HILCHOT PESAH - SHULHAN ARUKH

The Month of Nisan, Shabbat HaGadol & Bedikat Hames

Hilchot Pesah Simanim 429–432

Series Introduction

- New series for 2025 on **Hilchot Pesach**, following previous learning of Hilchot Shabbat, Sukkot, and Chanukah.
- Hilchot Pesach comprises **61 simanim** in the Shulchan Aruch — significantly more complex and extensive than Chanukah (~15 simanim).
- **This year (5785/2025):** Erev Pesach falls on Shabbat (Pesach begins Motzei Shabbat), adding unique complexities addressed in dedicated simanim later.
- **Focus of this series:** The preparatory halachot from the beginning — Bedikat Chametz, Biur Chametz, Hagalat Kelim, baking of Matzot — rather than the Seder itself.
- Primary source: Shulchan Aruch with Sephardi psak, supplemented by Rama, Mishnah Berurah, and Acharonim.

Siman 429 – Laws of the Month of Nisan (שאין נופלין על פניהם בכל חודש ניסן)

Contains 2 Se'ifim

Se'if 1 – Learning Hilchot Pesach 30 Days Before

Shulchan Aruch: שואלין בהלכות הפסח קודם לפסח שלושים יום — We ask and discuss the halachot of Pesach beginning 30 days before the Chag.

Source — Two Gemarot and an Apparent Contradiction

1. **Gemara (Pesachim 6a):** שואלין ודורשין בענין החג שלושים יום קודם — "We inquire and expound regarding the Chag 30 days before." Most Rishonim understand this as an **obligation** to teach, study, and discuss the halachot of Pesach from 30 days prior.
2. **Gemara (Megillah):** Moshe Rabbeinu instituted that Bnei Yisrael should study the laws of each Chag **on the Chag itself** — Hilchot Pesach on Pesach, Hilchot Sukkot on Sukkot.

The Contradiction — Rabbenu Nisim's Resolution

- **Question:** Is the obligation 30 days before, or on the Chag itself?
- **Rabbenu Nisim's Chiddush:** The "30 days before" is a **din in Talmud Torah** — it means that when a rabbi has many questions to answer, from 30 days before Pesach he must **prioritise Pesach-related**

questions over others. However, the actual obligation to **teach and study** the halachot is only on the Chag itself, per Moshe's institution.

Majority View — Obligation from 30 Days Before

- **Most Rishonim reject Rabbenu Nisim** and hold there is a genuine obligation to learn Hilchot Pesach from 30 days before.
- They resolve the contradiction in two ways:

1. Moshe's institution was the original; the 30-day rule was a **later development** expanding it.
2. **Beit Yosef:** 30 days before = learning about **preparations** for the Chag. Moshe's institution = learning the halachot of **the Chag day itself** (Yom Tov). Two different aspects.

Practical Halacha

- The Shulchan Aruch rules in accordance with the majority: **we begin studying Hilchot Pesach 30 days before**.
- Every individual has an obligation to review and learn Hilchot Pesach annually — set aside time each day from 30 days before.
- The 30 days before Pesach **begins on Purim** — this is why there is a minhag to share a Pesach-related halacha or Torah idea already on Purim itself.
- **Rambam** lists these as **two distinct dinim**: (a) learning on the Chag itself, and (b) preparing 30 days before.

Does This Apply to Other Chagim?

Opinion	Scope
Some Poskim	Applies to all Chagim — 30 days before Sukkot, Shavuot, etc.
Other Poskim	Specifically Pesach only, because its halachot are so complex and vast
Vilna Gaon (compromise)	Before Pesach = **obligatory**. Before Shavuot/Sukkot = **a good thing / nice custom**, but not the same level of obligation

- **Shulchan Aruch's implication:** This is a din unique to Pesach, since he records it specifically in Hilchot Pesach.
- Nevertheless, on **all three Chagim**, one should prioritise learning the halachot relevant to that Chag on the Chag day itself.

Mishnah Berurah — Focus on Practical Halachot

- The Mishnah Berurah criticises the practice found in some communities (especially very Charedi ones) where the rabbi gives a highly complex, theoretical pilpul on Shabbat HaGadol that is **not practically relevant**.
- He insists the focus must be on **relevant, practical halachot** of the Chag. This has always been the **Derech of the Sephardim** as well.

Se'if 2 (Rama) – Kimcha DePischa: Charity Before Pesach

Rama: The minhag is to purchase wheat to distribute to poor people in advance of Pesach. Anyone who has been living in the community for **12 months** must contribute to the communal fund for the poor.

Key Points

- **Rama uses the word "minhag" (custom)**, but the Acharonim point out this appears to be a **genuine obligation** — it is recorded in the **Talmud Yerushalmi** as obligatory.
- **Resolution:** The *obligation* is to give tzedakah for Pesach. The *minhag* aspect is the specific practice of going and buying actual food/wheat rather than just giving money.
- **Why specifically Pesach?** Pesach is recognised as the **most expensive of the Chagim** — we don't find a parallel halacha before Sukkot or Shavuot.

The Name "Kimcha DePischa" (קמחא דפסחא)

- Literally: "the flour of Pesach."
- **Development of the practice:**
- Originally: buy **wheat** for the poor (Rama)
- Then: give **flour**
- Current practice: give **matzot themselves** (Mishnah Berurah)
- Any form of tzedakah given for Pesach fulfils this obligation.

Who Is Obligated?

- Someone who has lived in the community for **12 months**.
- Someone who has **moved to the community with intent to live there permanently** — even if less than 12 months.
- A person **visiting just for Pesach** — lesser obligation, though people should still support them.

Priorities in Giving

- There is an obligation to **focus first on the poor within your own town/community**.
- Giving to organisations and Torah institutions worldwide is commendable, but **it needs to start at home**, especially before Pesach.

Se'if 2 (continued) – Practices During the Month of Nisan

No Tachanun the Entire Month

Reasons for the festive character of Nisan:

1. **First 12 days:** In the time of the Mishkan, the inauguration (Chanukat HaMishkan) took place — each Nasi brought his sacrifice daily, making each day a Yom Tov.
2. **8 days of Pesach** follow.
3. Since the **majority of the month** (20 out of 30 days) is already festive, we extend it to the entire month.
4. **Midrash:** The inauguration of the future Beit HaMikdash will take place at the end of Nisan, after Pesach.

Specific Practices Omitted

- **No Tachanun** the entire month of Nisan.
- **No Tzidkatecha** at Shabbat Mincha — because Tzidkatecha is a form of Tzidduk HaDin (acceptance of divine judgement / remembrance of the dead) for three Tzaddikim who died on Shabbat (Moshe, David, and possibly Shlomo). Inappropriate during the festive month.
- **No public eulogies** — in olden days, eulogies were intensely emotional events with crying and chest-beating; this is forbidden during Nisan.
- **No public fasts announced** during Nisan.

Fasting in Nisan — Detailed Rules

Situation	Shulchan Aruch	Rama
Private fixed fast (e.g., every Mon/Thu)	**Permitted** — may continue in Nisan	**Forbidden** — no fasting at all, even private, even for parents' yahrzeit
Public fast	**Forbidden**	**Forbidden**
Ta'anit Chalom (bad dream)	**Permitted** — one may even fast on Shabbat for this	**Permitted**
Compensation fast after fasting on Shabbat	**Not required** in Nisan — fasting in Nisan is less problematic than on Shabbat, so no compensatory fast needed	Same
Bechorot on Erev Pesach	Discussed in a later siman	—

Stone Settings (Matzeivot)

- **It is forbidden to schedule a stone setting (unveiling) during the month of Nisan.** This is not widely known.
- A funeral must take place (with limited eulogy), but a stone setting — which involves eulogies and sadness — should not be fixed for a date during Nisan.

Fasting on a Wedding Day in Nisan

- Some allow it as a private fast — this is the general Ashkenazi practice.
- **Sephardi position:** The minhag of the Sephardim is that it is actually **wrong (not correct) for a Chatan to fast on his wedding day** — the wedding day is a personal Yom Tov, making fasting inappropriate.
- **Exception:** If the Chatan is getting married at night, he may fast during the day and eat before the Chuppah.
- If getting married during the day — Sephardim do not fast.

No Tzidduk HaDin at Funerals

- The Rama states: we refrain from Tzidduk HaDin at funerals during the entire month of Nisan.

Mizmor LeTodah on Erev Pesach

- **We do not say Mizmor LeTodah on Erev Pesach** — because the Todah offering included bread (chametz), and since chametz could not be offered on Erev Pesach, we omit the psalm.
- Note: This is a minhag.

Isru Chag (איסרו חג)

Rama: It is customary to eat well on the day after each of the three festivals. This is called **Isru Chag**.

- **Source:** Gemara in Sukkot, expounding the pasuk from Hallel: אִסְרוּ חַג בַּעֲבֹתִים עַד קַרְנוֹת הַמִּזְבֵּחַ.
- Simple meaning: "Bind the festival offering with ropes to the horns of the altar."
- Gemara's drash: **אִסְרוּ חַג** — "tie yourself to the festival" / stay attached to its spirit. **בַּעֲבֹתִים** — with "fat" animals (עבות = thick/fat), i.e., eat well. **עַד קַרְנוֹת הַמִּזְבֵּחַ** — as if one offered a sacrifice.
- **Concept:** After the spiritual high of the Chag, we take something mundane (a meal) and infuse it with the light of the Chag, carrying it into daily life.
- **One should not fast on Isru Chag** — not after Pesach, Shavuot, or Sukkot.

Siman 430 – Shabbat HaGadol (שבת הגדול)

Contains 1 Se'if

Se'if 1 – Why It Is Called Shabbat HaGadol

Shulchan Aruch: The Shabbat preceding Pesach is called **Shabbat HaGadol** because of the miracle (נס) that occurred on it.

The Miracle

- When Bnei Yisrael left Mitzrayim on **15 Nisan (a Thursday)**, the **10th of Nisan was a Shabbat**.
- The Torah commands (Parashat Bo): בֶּעָשֹׂר לַחֹדֶשׁ הַזֶּה — on the 10th of Nisan, each family was to take a sheep and prepare it for the Korban Pesach.
- The sheep was **the deity of the Egyptians**. The Jews took these sheep and tied them to their doorposts openly.
- **The great miracle:** Despite the Egyptians' fury, they could not harm the Jews. The dread of Hashem was already upon them.
- The Chachamim chose to commemorate this miracle on **the Shabbat** (not on the 10th of the month), even though Shabbat doesn't always fall on the 10th.

Alternative Reason

- Some Acharonim say it is called "HaGadol" because the rabbi gives the **longest (gadol) derashah** of the year on this Shabbat.

The Greeting of Shabbat HaGadol

- **The Chida** writes that the minhag of the **Medakdikim (meticulous ones) of Yerushalayim** is to greet each other with **"Shabbat HaGadol Shalom"** rather than the usual "Shabbat Shalom U'Mevorach."
- This is the only special Shabbat (besides Shabbat Shuvah) where the greeting changes — despite other named Shabbatot existing (Shabbat Chazon, Shabbat Nachamu, etc.).

When Erev Pesach Falls on Shabbat (This Year — 5785)

- **Shabbat HaGadol itself** is Erev Pesach — that Shabbat carries the title "Shabbat HaGadol."
- However, the **great derashah** is given on the **preceding Shabbat** — because on Erev Pesach/Shabbat itself, it would be too late to teach people how to kasher utensils, etc.
- **Everything else** — including the Ashkenazi minhag of reading the Haggadah (see below) — remains on Erev Pesach/Shabbat HaGadol itself.

Rama – Reading Part of the Haggadah on Shabbat HaGadol

- **Ashkenazi minhag:** Read part of the Haggadah on Shabbat HaGadol — from "Avadim Hayinu" until "Lechaper Al Kol Avonoteinu."
- **Reason:** To commemorate the miracle of the 10th of Nisan.
- **Vilna Gaon's reservation:** He did not follow this minhag, since the Haggadah itself states the mitzvah of discussing the Exodus is specifically on **Pesach night**, not before.
- **Result:** Not all Ashkenazi communities follow this minhag, though many do.

Siman 431 – The Time of Bedikat Chametz (בדיקת חמץ)

Multiple Se'ifim discussed

Se'if 1 – When and How to Check

Shulchan Aruch: At the **beginning of the night of the 14th** (of Nisan), one checks for chametz by the light of a candle, in all the cracks and crevices of the house, in all places where it is **customary (derech) to bring chametz**.

The Timing

- The mitzvah is to perform Bedikat Chametz **as early as possible at the beginning of the night**.
- This is **more than the general principle** of zerizin makdimin (the diligent perform mitzvot early). There is a **specific din** that the Chachamim instituted Bedikat Chametz to be at the **very beginning of the night**.

This Year (5785): The 14th falls on Friday night (Shabbat), so Bedikat Chametz cannot be performed then. It is therefore brought forward to Thursday night.

Why Bedikat Chametz Exists — Torah vs. Rabbinic Obligation

Min HaTorah (Biblical level):

- A person can fulfil the obligation by simply **nullifying (bitul)** ownership of all chametz — sincerely declaring in one's heart that he relinquishes all property rights over any chametz he owns.
- The Torah prohibits: בַּל יֵרָאֶה וּבַל יִמָּצֵא — chametz should not "be seen" or "be found" **that belongs to you**.
- Once ownership is relinquished, even chametz physically present in your home is not a Torah violation.
- **Seeing chametz that isn't yours** (e.g., walking past a bakery on Pesach) — no prohibition at all.

The Chachamim instituted Bedikat Chametz for two reasons:

1. **Sincerity concern:** People may not genuinely relinquish ownership. The test: if your chametz were stolen over Pesach, would you truly feel no loss? If you'd claim insurance, the bitul wasn't sincere.
2. **Temptation concern:** Even with sincere bitul, if chametz is physically present, a person may forget it's Pesach and come to eat, drink, or benefit from it.

Therefore: The Chachamim required **physical searching and removal** of chametz — not merely verbal nullification.

Note on Mechirat Chametz (selling chametz): The concept of selling chametz is a **much later development**. These halachot assume no sale — the obligation is to physically remove and destroy.

Why Specifically at Night?

Two reasons:

1. **Practical:** Nighttime is when people are home from work and available.
2. **Functional:** The contrast of darkness with candlelight allows one to see into corners and crevices more effectively than daylight alone.

Using a Torch / Phone Flashlight

- **The Poskim accept** that a torch or phone flashlight works as "or ha'ner" (the light of the candle) for Bedikat Chametz. It has the same — if not better — illumination.

Switching Off the Lights?

- **Syrian minhag:** Switch off electric lights and search by candlelight only.
- **Justification:** The contrast of darkness with the candle flame may help reveal chametz in corners (per Mishnah Berurah's reasoning for nighttime).
- **Practical ruling:** This is a nice minhag but **not obligatory**. If searching is more effective with lights on, that is perfectly fine. The Rav personally keeps lights on.

What Needs to Be Checked?

The rule: Only places where it is **derech (customary) to bring chametz** need to be checked.

- In Talmudic and Rishonic times, there was **no concept of weeks-long Pesach cleaning**. The entire search was done on the night of the 14th, taking several hours.
- Modern reality: Bigger homes, more appliances, more complexity — so people clean in advance.

If you cleaned in advance:

- Areas checked before Pesach **do not need rechecking** on the night of the 14th, **provided you are certain** no chametz has entered since.
- "Certain" means: you know that no one has gone into that room/area since it was checked.

Exception — Young Children:

- The Gemara compares a child to a mouse — they carry chametz from place to place.
- **Any area within a child's reach** must be rechecked on the night of Bedikat Chametz, even if previously cleaned.
- This includes: ground level, low drawers, anywhere a child could drop food while walking around.

No need to check:

- Chandeliers, toilets, tops of bedroom cupboards, attics — anywhere chametz is **never brought or stored**.
- If there is a strict household policy of no food in certain areas (e.g., upstairs bedrooms), those areas don't require checking.
- **Exception:** With young children, you must check everywhere they can reach — even toilets.

Restrictions Before Bedikat Chametz — Not Beginning Activities

General principle (found in many areas of halacha): When the time for a mitzvah arrives, one may not begin activities that could cause one to forget.

Shulchan Aruch:

- From the time of Bedikat Chametz (nightfall, or half an hour before for eating), one may **not begin a new meal, activity, or Torah study**.
- If one **began before** the time arrived — one may continue (began b'heter).

Mishnah Berurah — Stricter View:

- There is a **special din** in Bedikat Chametz beyond the regular rule.
- Since the Chachamim's takanah was specifically for the **beginning of the night**, even having something small to eat is problematic once the time arrives.
- One should begin Bedikat Chametz **immediately**.

Rama — Even Stricter:

- Even if one **began eating or learning before** the time — **one must stop** when the time for Bedikah arrives.
- This is **unique to Bedikat Chametz** — in all other areas of halacha, if you began before the time b'heter, you may continue.
- This underscores the special emphasis on beginning Bedikat Chametz right at the start of the night.

Arvit vs. Bedikat Chametz — Which Comes First?

Halacha (Sephardi psak): Arvit first, then Bedikat Chametz.

Question raised: With Chanukah, we learned that candle-lighting comes before Arvit because the mitzvah is specifically at the beginning of the night. Why not the same here?

Two answers:

1. The "beginning of the night" aspect of Bedikat Chametz is **debatable** — the Shulchan Aruch mentions it but also says one need not stop a prior activity (unlike Chanukah where you do stop).
2. Bedikat Chametz **takes hours**, so there is a real concern that if done first, one will forget or be too tired for Arvit. Chanukah candle-lighting takes one minute — no such concern.

Beginning from Sunset (Shkiyah)

- In England (and other northern locations), nightfall (tzet hakochavim) can be late — around **8:15–8:30 PM** in mid-April.
- There is room to **begin Bedikat Chametz from shkiyah (sunset)**, provided the search continues into actual nightfall.
- This leniency is especially relevant for families with young children who want to participate.

Siman 432 – The Bracha on Bedikat Chametz (ברכת בדיקת חמץ)

Multiple Se'ifim discussed

Se'if 1 – The Wording of the Bracha: "Al Biur Chametz"

Shulchan Aruch: Before beginning Bedikat Chametz, one recites the bracha: **"אשר קדשנו במצוותיו... וציוונו על בִּעוּר חמץ"** — "…Who has sanctified us with His commandments and commanded us **concerning the destruction of chametz**."

Why "Biur" and Not "Bedikat"?

- **The question:** We are about to *search* for chametz (bedikah), not *destroy* it (biur). Why say "al biur chametz"?
- **Answer:** Bedikat Chametz is **only a means to an end**. The bedikah has no intrinsic purpose — it exists solely to enable the biur (destruction) the next morning.
- If one searches the entire house meticulously but never destroys the chametz found — the whole exercise was pointless.
- The Chachamim instituted the search so that one can then properly destroy.
- Therefore, the bracha is formulated on the **end purpose (biur)**, not the intermediate step (bedikah).

The Word "Al" (על) vs. "Le-" (ל)

- We say **"al biur"** (על ביעור) — "concerning" the destruction — not "le-va'er" (לבער) — "to destroy."
- "Le-" would imply: "I am about to do this right now."
- "Al" implies: "concerning this matter" — it is going to happen (tomorrow), and the bedikah tonight is part of that process.

The Meaning of "Biur"

- **Sephardi understanding:** Biur means **destruction / getting rid of** — by any means (burning, crumbling, flushing, etc.).
- **Ashkenazi understanding:** Biur means specifically **burning** — which is why Ashkenazim are particular to burn their chametz.

Unique Aspect — Bracha Now, Fulfilment Later

- **Question raised in class:** This seems unprecedented — the bracha is said at night, but the biur doesn't happen until ~12 hours later the next morning.
- **Resolution:** The bracha is technically going **on the bedikah itself** — that is the mitzvah being performed now. We simply use the word "biur" because the bedikah is a means toward the biur. There is no hefsek (interruption), because the mitzvah act (searching) begins immediately after the bracha.

A Person Without a Home

- **Discussion:** Does a homeless person perform Bedikat Chametz? On his pockets?
- The takanah of the Chachamim was for **homes and dwellings** — not pockets.
- While we do check pockets as well (agav / incidentally), there was no formal institution for checking pockets.
- This remains a **matter of debate** among the Poskim.

Se'if 2 – Forgetting the Bracha

Shulchan Aruch: If one forgot to say the bracha before beginning, one may say it **at any point** during the search, as long as one has not yet finished — because searching the entire home is one continuous mitzvah.

- Example: If you've searched half the house and then remember — say the bracha and continue searching the remaining half.

Se'if 3 – Speaking During Bedikat Chametz

Shulchan Aruch:

- **From the bracha until beginning to search:** One **must not speak at all** (no hefsek between bracha and start of the mitzvah).
- **After beginning the search:** One *should ideally not speak* until completing the entire search, in order to maintain focus and attention.
- **In practice:** Once at least one room/area has been searched, the bracha has "landed" on something. If necessary, one may speak — but it is better not to.

What Speech Is Permitted?

- **Anything related to the search:** "Has this cupboard been checked?" / "What is this ingredient?" / "Check behind there" — all permitted; it is part of the bedikah.
- **Unrelated speech** (phone calls, casual conversation): Should be avoided. If urgent, one may take a phone call — but try to minimise.

Summary of Key Topics Covered

Siman	Topic
429:1	Obligation to study Hilchot Pesach 30 days before; begins on Purim; Rambam's two distinct dinim
429:2 (Rama)	Kimcha DePischa — obligation to give tzedakah/food before Pesach; who is obligated (12-month resident)
429:2 (cont.)	Month of Nisan: no Tachanun, no eulogies, fasting rules, stone settings, wedding-day fasting (Sephardi view), Isru Chag
430:1	Shabbat HaGadol — the miracle of 10 Nisan; the derashah; greeting "Shabbat HaGadol Shalom"; this year's special case
430 (Rama)	Ashkenazi minhag to read Haggadah on Shabbat HaGadol; Vilna Gaon's reservation
431:1	Bedikat Chametz — timing (beginning of the night); Torah vs. rabbinic obligation; bitul vs. physical search; why at night; candle/torch/lights; what to check; children; restrictions before bedikah; Arvit vs. Bedikah
432:1	Bracha of "Al Biur Chametz" — why not "Bedikat"; biur = means vs. end; forgetting the bracha; speaking during the search

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